

GAHC010103902023



2025:GAU-AS:10444

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/2697/2023

NARENDRA NATH BARUAH
S/O- LATE MUNINDRANATH BORUAH, R/O- KORDOIGURI, P.O.
KORDOIGURI, GOLAGHAT, ASSAM

VERSUS

THE STATE OF ASSAM AND 6 ORS
REPRESENTED BY THE COMMISSIONER AND SECRETARY TO THE
GOVERNMENT OF ASSAM, DEPARTMENT OF ELEMENTARY EDUCATION,
DISPUR, GUWAHATI-781006, ASSAM

2:THE COMMISSIONER AND SECRETARY TO THE GOVT. OF ASSAM
ELEMENTARY EDUCATION
DISPUR
GUWAHATI-781006
ASSAM

3:THE ACCOUNTANT GENERAL
MAIDAMGAON
BELTOLA
GUWAHATI
ASSAM

4:DIRECTOR OF ELEMENTARY EDUCATION
KAHILIPARA
MAIN ROAD
781019
ASSAM

5:BLOCK ELEMENTARY EDUCATION OFFICER
GOLAGHAT
BLOCK MISSION COORDINATOR
SSA GOLAGHAT SOUTH BLOCK
SARUPATHAR

DIST. GOLAGHAT
ASSAM

6:DISTRICT ELEMENTARY EDUCATION OFFICER
GOLAGHAT
ASSAM

7:HEADMASTER
CHEWAGURI MVS SCHOOL
GOLAGHAT
ASSAM

8:THE COMMISSIONER AND SECRETARY
DEPARTMENT OF PENSIONS AND PUBLIC GRIEVANCES GOVERNMENT
OF ASSAM
HOUSEFED COMPLEX
BELTOLA
GUWAHATI- 781006
ASSAM.

9:CHAIRMAN
BOARD OF SECONDARY EDUCATION (ASSAM)
RAILWAY COLONY ROAD
RAILWAY COLONY
BAMUNIMAIDAN
GUWAHATI- 781021
ASSAM.

10:THE COMMISSIONER AND SECRETARY
FINANCE DEPARTMENT
GOVERNMENT OF ASSAM
GROUND FLOOR
F BLOCK
JANTA BHAWAN
DISPUR
GUWAHATI-781006

11:DIRECTOR OF ACCOUNTS AND TREASURIES
ASSAM
5TH FLOOR
NEW KAR BHAWAN
GANESHGURI
DISPUR
GUWAHATI
ASSAM-78100

Advocate for the petitioner : Mr. P.R. Sarma.

Advocates for the respondents : Mr. P.N. Sarma (for R-1, 2, 4 & 6),
Mr. D. Bhattacharya (for R-3);
Mr. S. Bora (for R-5)
Mr. B. Deori, Jr. Govt. Adv. (for R-8);
Mr. D.K. Roy (for R-9);
Mr. A. Chaliha (for R-10 & 11).

Date of hearing : 18.06.2025

Date of judgment : 08.08.2025

**BEFORE
HONOURABLE MR. JUSTICE ROBIN PHUKAN**

JUDGMENT & ORDER (CAV)

Heard Mr. P.R. Sarma, learned counsel for the petitioner. Also heard Mr. P.N. Sarma, learned standing counsel for the respondent Nos. 1, 2, 4 and 6; Mr. D. Bhattacharya, learned standing counsel for the respondent No. 3; Mr. S. Bora, learned standing counsel for the respondent No. 5; Mr. B. Deori, learned Junior Government Advocate for the respondent No. 8; Mr. D.K. Roy, learned standing counsel for the respondent No. 9 and Mr. A. Chaliha, learned standing counsel for the respondent Nos. 10 and 11.

2. In this petition, under Article 226 of the Constitution of India, the petitioner has prayed for issuing direction to the respondents to release his retirement benefits, which he is entitled to on his retirement from service w.e.f. 31.07.2022, and to issue direction to the respondents for payment of appropriate interest as per bank norms on delayed payment of the aforementioned benefits.

3. The background facts, leading to filing of the present petition, are briefly stated as under:

“The petitioner joined Dhupguri M.E. School on 19.11.1991 and retired from the post of Head Master from Chewaguri M.V. School, Golaghat, Assam on 31.07.2022. After his retirement, the District Elementary Education Officer (‘DEEO’, for short), Golaghat, vide letter dated 09.11.2022, asked the petitioner to provide his original HSLC Pass Certificate for verification of date of birth and it was also stated in the said letter that unless the document is provided, the petitioner's pension case would not be processed. Accordingly, the petitioner had submitted HSLC Pass Certificate on time. Thereafter, he had preferred a representation before the DEEO on 23.11.2022 and in the said representation, he stated that there was discrepancy regarding his age on the Admit Card and HSLC Original Certificate, and further, he stated that on 27.07.2020, he had submitted an affidavit before the Block Mission Coordinator, Golaghat South Block, wherein he had stated that he be allowed to superannuate as per the age of his Admit Card, where his date of birth is correctly stated, and he came to know that he had superannuated not according to Admit Card, but as per HSLC Certificate. Thereafter, the Block Elementary Education Officer, Golaghat South Block had provided the petitioner with a letter on 25.04.2022, stating that on 31.07.2022, the petitioner would attain 60 years of age and as such, the petitioner had to absolve his duties i.e. superannuate from the post of Head Master of Chewaguri M.V. School, Golaghat, Assam, and the Block Mission Coordinator, Golaghat South Block had provided a Non-Liability Certificate dated 10.10.2022, to the petitioner wherein it was categorically stated that the petitioner had no financial

liabilities. Despite such Non-Liability Certificate being issued, the respondent authorities have neither released the pension and nor the pensionary benefits of the petitioner till date.

The service book is not provided to a person, who has some liability attached and as the petitioner had no liability, the same was provided to him, and in spite of the same, his pension and other pensionary benefits have not been released till date.

On 03.03.2023, the petitioner filed one representation to the Education Minister, Assam, but the same failed to evoke any response. Thereafter, the petitioner had preferred a representation before the DEEO, Golaghat, Assam, on 09.03.2023, stating that he had retired on 31.07.2022, as per the directions of the authority, but the same also failed to evoke any response. Again on 24.04.2023, the petitioner had preferred a representation before the DEEO, Golaghat, Assam, and the same also failed to evoke any response. Being left with no other option, the petitioner has approached this Court by filing the present petition claiming the reliefs as aforesaid."

4. The respondent No. 4/Director of Elementary Education, Assam has filed affidavit-in-opposition, wherein it is stated that the petitioner joined in the Dhupguri M.E. School on 19.11.1991. As per his service record, his date of superannuation was 31.07.2020. Then the Block Elementary Education Officer ('BEEO', for short), South Block, Sarupathar, sent a retirement notice to the petitioner on 01.06.2020, vide letter No. BEEO/Golaghat South/ Retirement/ 2013/1280, indicating that his date of superannuation is 31.07.2020. And accordingly, he was asked to handover the charge of the school to next senior most Assistant Teacher, along with all other documents in the forenoon of

31.07.2020, but the petitioner through an affidavit and application dated 27.07.2020, had assured the BEEO, South Block, Sarupathar that in original HSLC Pass certificate issued by the SEBA, his age as on 1st March, 1979, has been wrongly recorded as 18 years 08 months in place of 16 years 08 months and he had given an affidavit that he would be responsible for any discrepancy that may arise due to his date of birth in future and continued his service till 31.07.2022.

4.1. It is also stated that the DEEO, Golaghat had asked the petitioner to provide the original HSLC Pass Certificate to verify his actual date of birth as two different date of birth were found in his HSLC Admit Card and HSLC Pass Certificate, and in order to confirm the actual date of birth of the petitioner, the DEEO, Golaghat, on 13.03.2022, had sent the HSLC Pass Certificate and Admit Card to the Chairman, SEBA, Assam and in reply the Chairman SEBA, vide communication dated 22.03.2023, confirmed the actual age of the petitioner being 18 years 08 months as on 01.03.1979, which means the petitioner attained the age of superannuation on 31.07.2020, instead of 31.07.2022, and thereafter, on 25.04.2022 the BEEO, South Block, Sarupathar had sent a retirement notice to the petitioner.

4.2. It is also stated that the Block Mission Coordinator had provided one Non-Liability Certificate to the petitioner only for SMC account and MDM account operation related issues, but not on the basis of teachers' salary and age related issues. However, the said certificate was cancelled by the BEEO, South Golaghat, vide order dated 02.05.2023, and that the petitioner himself admitted on 27.07.2020, that there is a discrepancy in his date of birth, in both HSLC Admit Card and HSLC Original Pass Certificate and thus, he prayed for continuing the process of pension on the basis of the date of birth recorded in

his HSLC Pass Certificate, because of which the DEEO, Golaghat communicated a letter on 29.05.2023, to the petitioner stating that there is no similarity in the date of birth of the petitioner in his AADHAAR and PAN cards with HSLC Original Pass Certificate, but till date, the petitioner had not replied to the letter of the DEEO, Golaghat and consequently, his pension proposal could not be processed by the Office of the DEEO, Golaghat, and since the pension related works are done online, it is not possible to proceed if there is dissimilarity in date of birth in the documents provided by the applicant.

4.3. It is also stated that the petitioner had misled the office and already overstayed for 2(two) years from his actual date of superannuation, and he had drawn excess salary for two years by misleading the office with mala fide intention, and hence, the excess drawal amount will be recovered from the petitioner. It is further stated that the assertion made by the petitioner about violation of his fundamental rights and principles of natural justice does not arise, and therefore, it is contended to dismiss this petition.

5. The petitioner has filed reply to the affidavit-in-opposition filed by the respondent No. 4, denying the statements and averments made in the said affidavit-in-opposition. It is stated that in the case of **State of Bihar and Ors. vs. Pandey Jagdishwar Prasad**, reported in (2009) 3 SCC 117, Hon'ble Apex Court has observed that the date of birth, mentioned in the matriculation certificate should be treated as the date of birth of the respondent. But, it would be open to the employee to place documents before the authorities that the date of birth shown in the service book taken from matriculation certificate was incorrect, and that on the basis of his admit card, he continued his service till 31.07.2022.

6. The respondent No. 9/Chairman, SEBA has also filed affidavit-in-opposition, wherein it is stated that on verification of the Admit Card and Pass Certificate issued to the petitioner with the records of the Board, following particulars are found:

“Roll-H No. 255 of HSLC (Supplementary) Examination, 1979

Candidate's name: Narendra Nath Baruah

Father's name: Munindra Nath Baruah.

Age: 18 years 8 months 00 days as on 01.03.1979”

6.1. It is also stated that the particulars of a candidate including date of birth/age are preserved in the office record i.e. MRS and TR and on the basis of these particulars, HSLC pass certificates are issued, and that in the Board's record i.e. MRS and TR, the age of the petitioner is found as 18 years 8 months 00 days as on 01.03.1979, and hence, the Board has rightly recorded the age of the petitioner as 18 years 8 months 00 days as on 01.03.1979 in the pass certificate. Regarding the admit card, it is stated that during that time, admit card were being written in school level and there was maximum probability of wrong recording, and as such, it may have happened in the petitioner's admit card, as his age was recorded as 16 years 8 months 00 days as on 01.03.1979, in place of 18 years 8 months 00 days as on 01.03.1979.

7. Mr. Sarma, learned counsel for the petitioner submits that the age of the petitioner, as per HSLC Admit Card, as on 01.03.1979, is 16 years 8 months 00 days, but as HSLC Pass Certificate, his age as on 01.03.1979, is 18 years 8 months 00 days, and that the correct age is reflected in his Admit Card and the same was also issued by the respondent No. 9, and that the age mentioned in the HSLC Pass Certificate is incorrect, and therefore, when the petitioner received notice from the BEEO, Golaghat South Block about his date of

retirement, then the petitioner had filed an affidavit and produced his HSLC Admit Card and on the basis of undertaking given by the petitioner in the affidavit, he was allowed to retire on 31.07.2022. Mr. Sarma also submits that in spite of several representations being filed to the respondent authorities, the same failed to evoke any response from them and as such, the right to livelihood, as guaranteed under Article 21 of the Constitution of India and other rights, stand violated, and that since the petitioner has already retired from service, the question of recovery does not arise. Mr. Sarma further submits that in the service book of the petitioner, his date of birth is mentioned as 01.07.1962, and that in view of the law laid down by Hon'ble Supreme Court in the case of **State of Punjab and Ors. Vs. Rafiq Masih (White Washer)**, reported in (2015) 4 SCC 334, the question of recovery does not arise.

7.1. In support of his submission, Mr. Sarma has referred to the following decisions:

- (i) **Dakshaprasad Deka vs. Inspector General of Police, Assam and Ors.**, reported in 1966 SCC OnLine Gau 9.
- (ii) **Union of India and Ors. vs. Major General Madan Lal Yadav (Retd.)**, reported in (1996) 4 SCC 127.
- (iii) **Bhanwarsingh Bhupsingh Rajput vs. State of M.P.**, reported in 1963 SCC OnLine MP 16.
- (iv) **Sushil Kumar Baruah vs. State of Assam and Ors.**, reported in 2007 (1) GLT 533.
- (v) **State of U.P. and Anr. vs. Shri Krishna Pandey**, reported in (1996) 9 SCC 395.

8. Per contra, Mr. Sarma, learned standing counsel for the respondent Nos. 1, 2, 4 and 6 submits that the petitioner himself is responsible for non-releasing of

his pensionary benefits. Mr. Sarma by referring to a letter of the BEEO, South Golaghat, submits that the petitioner was asked to produce some of the documents and to explain the discrepancy in his Aadhaar Card and PAN Card in respect of his date of birth with that of the service book, but he has not cooperated with the respondent authorities and under such circumstances, the respondent authorities cannot be faulted with. Mr. Sarma also submits that as per HSLC Pass Certificate, the petitioner was supposed to retire in the year 2020, but while the BEEO had sent one retirement notice to him, the petitioner, showing his HSLC Admit Card, and by filing one affidavit, undertaking therein that he will be responsible for any future complication, and thereafter, he was allowed to work till 2022. But, his pension papers could not be processed because of the discrepancy in his date of birth and non-furnishing of relevant particulars by him. By producing the original service book of the petitioner, Mr. Sarma submits that there is over writing in respect of the date of birth of the petitioner and originally it was written as 01.07.1962, but the same was overwritten as 01.07.1960, and that the petitioner has not approached this Court with clean hands, and as such, he is not entitled to any equitable relief, and therefore, Mr. Sarma has contended to dismiss this petition.

8.1. In support of his submission, Mr. Sarma has referred to the following decisions:

- (i) **Anadhir Ranjan Paul vs. State of Assam and Ors.**, reported in **2014 (2) GLT 543**.
- (ii) **Manik Sarma vs. State of Assam and Ors.**, in **WP(C) No. 2875/2016**.
- (iii) **State of Bihar and Ors. vs. Pandey Jagdishwar Prasad**, reported in **(2009) 3 SCC 117**.

(iv) **Niran Gogoi vs. State of Assam and Ors., in WP(C) No. 4888/2024.**

(v) **Phulaton Gogoi vs. State of Assam and Ors., in WP(C) No. 4645/2024.**

9. Per contra, Mr. Roy, learned standing counsel for the respondent No. 9 (SEBA), submits that as per record, the age of the petitioner, as on 01.03.1979, was 18 years 8 months 00 days and the same has been entered in MRS and TR, and the Board has rightly recorded the age of the petitioner as 18 years 8 months 00 days as 01.03.1979, in the HSLC Pass Certificate. Regarding the HSLC Admit Card, Mr. Roy submits that the admit cards were written in the school level at that point of time and there may be some wrong recording of his age as 01.03.1979, and under such circumstances, Mr. Roy has contended to dismiss this petition.

10. Having heard the submissions of learned counsel for both the parties, I have carefully gone through the petition and the documents placed on record, and also perused the decisions referred by learned counsel for both the parties.

11. It is not in dispute that the petitioner had joined in service on 19.11.1991. And he retired from service on superannuation on 31.07.2022, on the basis of his age so mentioned in his HSLC Admit Card. But, as per his HSLC Pass Certificate, issued by the respondent No.9 (SEBA), the age of the petitioner, as on 01.03.1979, was 18 years 8 months 00 days. It also appears that on the basis of the age mentioned in his HSLC Pass Certificate, a notice was issued to the petitioner by the BEE0, South Golaghat that his date of retirement is 31.07.2020, vide letter dated 01.06.2020. And this letter was issued on the basis of his service record.

12. Further, it appears that when the retirement notice was sent to the

petitioner on 01.06.2020, the petitioner had filed affidavit, along with his Admit Card that his age as on 01.03.1979 in his HSLC Pass Certificate has wrongly been recorded as 18 years 8 months 00 days in place of 16 years 8 months 00 days and he had given an undertaking that he would be responsible for any discrepancy that would arise in respect of his date of birth in future, and he continued his service till 31.07.2022.

13. Further it appears that having noticed the discrepancy, the DEEO, Golaghat had asked the petitioner to provide original HSLC Pass Certificate to verify his actual date of birth and thereafter, one letter was written to the Chairman, SEBA and in the reply dated 22.03.2023, it was confirmed that the actual age of the petitioner was 18 years 8 months 00 day as on 01.03.1979.

14. The affidavit-in-opposition filed by respondent No. 9, reveals that as on 01.03.1979, the age of the petitioner was 18 years 8 months 00 days and the said date was preserved in the office record i.e. MRS and TR, and on the basis of these particulars, the HSLC Pass Certificate was issued and the age of the petitioner was mentioned as 18 years 8 months 00 days as on 01.03.1979. Said affidavit also indicates that as per HSLC Admit Card, the age of the petitioner is shown as 16 years 8 months 00 days, however, an explanation is put forwarded for the said discrepancy by the respondent No. 9 that at the relevant point of time, admit cards were written in the school level and there may be some mistake in recording age of the petitioner in the Admit Card. It is to be noted here that this fact in the affidavit-in-opposition filed by the respondent No. 9, is not controverted by the petitioner. And in the given facts and circumstances the explanation, so put forwarded, appears to be reasonable and acceptable.

15. It also appears that though there was discrepancy in respect of his age in his Admit Card and HSLC pass certificate, the petitioner slept over the same

throughout his service period, without taking any steps to rectify the same till receipt of the retirement Notice, issued by the BEEO, South Golaghat on 01.06.2020, that his date of retirement is 31.07.2020. At the fag end of his career, he came out with his HSLC Admit Card to claim that his age as on 01.03.1979, is 16 years 8 months 00 days. And in view of the explanation, so put forwarded for the said discrepancy by the respondent No. 9, and having not been controverted such explanation by the petitioner, his contention, cannot be accepted.

16. Though the petitioner has relied upon a decision of Hon'ble Supreme Court in the case of **Pandey Jagdishwar Prasad, (supra)** to contend that - it would be open to the employee to place documents before the authorities that the date of birth shown in the service book taken from matriculation certificate was incorrect, and that on the basis of his admit card, he continued his service till 31.07.2022, and the authority had allowed him to continue in service, now they cannot turn around and made any recovery of the amount drawn by him, yet having carefully gone though the said decision, it is being noticed that factually said decision is different from the present case. In the said case, there exist two dates in his service record and that the authority had not taken any step to delete the initial date of birth on the basis of matriculation certificate and that no notice was issued to the petitioner of the said case. But, in the instant case, it is not the case of the petitioner that there exists two date of birth in his service record and that no notice was issued to him. Indisputably, notice was issued to him indicating his date of retirement and asking him to hand over charge of the Head Master.

17. Therefore, this Court is of the view that the aforesaid decision would not help him; instead it has strengthened the case of the respondents who had

placed reliance upon the matriculation certificate in calculating the actual date of retirement of the petitioner, in view of the observation made in para No.13 of the said decision, wherein it has been held that the date of birth mentioned in the matriculation certificate should be treated as the date of birth.

18. It is not in dispute that the petitioner then filed an affidavit that in his HSLC Pass Certificate his age has wrongly been recorded as 18 years 8 months 00 days, in place of 16 years 8 months 00 days. Then he had given an undertaking that he would be responsible for any discrepancy that would arise in respect of his date of birth in future, and he continued his service till 31.07.2022.

19. Indisputably, the DEEO, Golaghat had sent a letter, dated 29.05.2023, to the petitioner in respect of the discrepancy of his date of birth in his Aadhaar Card and PAN Card with that of his HSLC Pass Certificate, and he had not replied to the DEEO for which the pension proposal could not be processed by the Office of the DEEO, Golaghat, and this fact is clearly mentioned in paragraph No. 11 of the affidavit-in-opposition of the respondent No. 4.

20. However, in his reply to the affidavit-in-opposition filed by the respondent No. 4, the petitioner had had stated that on 30.06.2023, a similar letter like letter dated 29.05.2023, was sent to him by the DEEO, Golaghat and he replied to the same on 07.07.2023. A perusal of the letter dated 07.07.2023, indicates that vide said letter, the petitioner had informed the DEEO, Golaghat that he had already approached this Court by filing writ petition, being WP(C) No. 2697/2023, and the matter is sub-judice.

21. Thus, it appears that the statements and averments made by the respondent No. 4 in its affidavit-in-opposition, in paragraph No. 11 that the

petitioner has not replied to the letter of the DEEO, dated 29.05.2023, and consequently, his pension proposal could not be processed by the Office of the DEEO, Golaghat, remains un-traversed.

22. In the given factual scenario, the petitioner himself seems to be responsible for not receiving his pension and other pensionary benefits. Further, from the perusal of the affidavit filed by the respondent authorities and the documents placed on record, and also considering the service book of the petitioner, this Court is of the view that the petitioner has not approached this Court with clean hands.

23. Though Mr. Sarma, the learned counsel for the petitioner, relying upon the decision of Hon'ble Supreme Court in the case of **Rafiq Masih (supra)** submits that since the petitioner had already retired, the question of recovery does not arise, yet, the said submission left this Court unimpressed. In the said case, Hon'ble Supreme Court, in para No.18, had summarized the following few situations, wherein recoveries by the employers, would be impermissible in law:

(i) Recovery from the employees belonging to Class III and Class IV service (or Group C and Group D service).

(ii) Recovery from the retired employees, or the employees who are due to retire within one year, of the order of recovery.

(iii) Recovery from the employees, when the excess payment has been made for a period in excess of five years, before the order of recovery is issued.

(iv) Recovery in cases where an employee has wrongfully been required to discharge duties of a higher post, and has been paid accordingly, even though he should have rightfully been required to work against an inferior post.

(v) In any other case, where the court arrives at the conclusion, that recovery if made from the employee, would be iniquitous or harsh or arbitrary to such an extent, as would far outweigh the equitable balance of the employer's right to recover.

24. But, the decision in **Rafiq Masih (supra)** stands clarified by Hon'ble Supreme Court in the case of **High Court of Punjab and Haryana and Others vs. Jagdev Singh**, reported in (2016) 14 SCC 267; wherein it has been held as under:-

“11. The principle enunciated in Proposition (ii) above cannot apply to a situation such as in the present case. In the present case, the officer to whom the payment was made in the first instance was clearly placed on notice that any payment found to have been made in excess would be required to be refunded. The officer furnished an undertaking while opting for the revised pay scale. He is bound by the undertaking.”

25. In the instant case, the petitioner had admittedly submitted an affidavit and undertaking dated 17.07.2020 that he would be responsible for any discrepancy that would arise in respect of his date of birth in future, and he continued his service till 31.07.2022. Said undertaking is annexed with the affidavit-in-opposition filed by the respondent No.4, as Annexure-II. In that view of the matter, the decision of Hon'ble Supreme Court in the case of **Rafiq Masih (supra)** would not advance the argument of Mr. Sarma, the learned counsel for the petitioner.

26. I have also gone through the decisions referred by Mr. P.R. Sarma, the learned counsel for the petitioner and also by Mr. P.N. Sarma, the learned

counsel for the respondents in Elementary Education Department. There is no quarrel at the Bar about the proposition of law laid down in the said cases but, in the given factual scenario, the same would not be applicable in all force to the facts and circumstances herein this case. Therefore, detail discussion of the same in this judgment is found to be not necessary.

27. Under the given facts and circumstances, following directions are issued :-

- (i) The petitioner is directed to cooperate with the respondent authorities by filing the requisite documents/particulars, as sought for by the DEEO, Golaghat, vide his letter dated 29.05.2023.
- (ii) On such documents/particulars, being filed by the petitioner, the respondent authority shall process the pension papers of the petitioner in accordance with the relevant laws/rules holding the field.
- (iii) The respondent authority shall also release the other pensionary benefits, which the petitioner is entitled to, as per rules.
- (iv) While carrying out the exercise, so mentioned in direction No. (ii) and (iii) above, the respondent authority has to ascertain the correct age of the petitioner and in doing so the respondent authority shall reckon his age on the basis of his matriculation certificate in view of discrepancy being explained in paragraph No.4 of the affidavit-in-opposition filed by respondent No.9, since the same remained uncontroverted by the petitioner as no reply to the affidavit was filed by him.
- (v) The pension and pensionary benefits, which the petitioner is entitled to, shall be reckoned on the basis of the age of the petitioner, that

has been mentioned in his matriculation certificate and his date of retirement shall be calculated on the basis of the said certificate, in view of the decision of Hon'ble Supreme Court in the case of **Coal India Ltd. and Anr. Vs. Ardhendu Bikas Bhattacharjee and Ors.**, reported in **(2005) 12 SCC 201**.

- (vi) This aforementioned exercise, including deduction/recovery of any sum, if permissible under the law, has to be carried out within a period of three months, from the date of receipt of certified copy of this order.
- (vii) The petitioner shall obtain a certified copy of this order and place the same before the respondent authority within a week from today.

28. In terms of above, this writ petition stands disposed of. The parties have to bear their own costs.

JUDGE

Comparing Assistant